

Isaiah Dukes p/k/a "Lil Zay Osama"
c/o Law offices of Daryl D. Jones P.C.
1644 N. Honore, Ste.210
Chicago, IL 60622
Attn: Daryl D. Jones

January 1, 2020

Anthony Catchings-Currie
p/k/a "NNTYSIX"
13049 South Escanaba Ave.
Chicago, IL 60633

Re: Isaiah Dukes p/k/a "Lil Zay Osama" -w- NNTYSIX/Producer Agreement

Dear Gentlepersons:

This letter, when signed by you and Isaiah Dukes p/k/a "Lil Zay Osama" (hereinafter referred to as "us", "we" or "our") will constitute the agreement with respect to you producing three (3) master recordings entitled "Last Year", "Together", "Last Year", "Everybody", and "Real Street Nigga" ("Masters") embodying the featured performances of our recording artist Isaiah Dukes p/k/a "Lil Zay Osama" ("Artist"). The Masters are intended for inclusion on the album entitled "TBD" ("Album") for the manufacture and distribution of phonograph records and other uses.

1. Services:

(a) Commencing on or about the date hereof, you will produce the Master on a non-exclusive, first priority basis pursuant to a production schedule designated by us after consultation with you.

(b) The Masters (excluding the copyright in the underlying compositions) shall, from the inception of their creation, be considered "works made for hire" for us within the meaning of the Copyright Act of 1976 (Title 17, U.S.C.), as amended. If it is determined that any Masters do not so qualify, then the Masters, together with all rights therein, including the sound recording copyright but excluding the copyright in the underlying composition, shall be automatically assigned to us by this agreement. Without limiting the generality of the preceding sentence, our designees, and we as the case may be, shall have the exclusive unrestricted worldwide and perpetual right to use, distribute, sell and exploit the Masters in any and all media or to refrain therefrom.

(c) You will deliver the Masters to us on a date to be designated by us. You will perform such services in connection with the Masters as are customarily performed by producers in the recording industry, including, without limitation, arranging for the use of recording studios and other necessary technical facilities and personnel. You shall be solely responsible for the preparation and submission of union forms and session reports to enable us to timely and properly complete and file all such documentation. You shall pay or reimburse us, upon demand, for any penalties, fines, late charges or other costs incurred solely by reason of your failure to

properly and timely comply with the foregoing and any such sums paid by us and not promptly reimbursed by you may, at our option be applied by us in reduction of any royalties, if any, payable to you hereunder. We hereby acknowledge satisfactory delivery of your services hereunder.

(d) The Masters shall be subject to our approval as commercially and technically satisfactory for the manufacture and sale of phonograph records; and upon our reasonable request, you shall render additional production services and/or re-edit any or all of the Masters until Masters commercially and technically satisfactory to us has been obtained. The parties hereby acknowledge that the Masters have been satisfactorily delivered. We hereby acknowledge satisfactory delivery of the Masters herein.

2. Budget:

The recording budget for the Masters (including the advance payable to you pursuant to paragraph 3 below) shall be determined by us and you (the "Approved Budget"). You shall be responsible for recording costs incurred in excess of the Approved Budget provided that such costs are solely the result of your acts or omissions ("Excess Costs"). We hereby acknowledge no Excess Costs.

3. Advance:

(a) In consideration of your services hereunder, we will pay to you an advance ("Advance") recoupable against royalties to you hereunder of One Thousand Five Hundred Dollars (\$1,500) Dollars per master for an aggregate total of Four Thousand Five Hundred Dollars (\$4,500), payable on full execution of this Agreement.

4. Royalties:

(a) You shall be entitled to receive and we will pay to you with respect to top-line Net Sales through normal retail channels in the United States of album-length phonorecords embodying the Masters a basic royalty (the "Basic Producer Rate"), pro-rated as provided below, equal to three percent (3%) with respect to the Masters recorded hereunder based on the Royalty Base Price.

(b) Your royalty shall be calculated, determined, adjusted and paid (but not escalated) on the same basis (e.g., definition of royalty base price, free goods, reserves, etc.) as Artist's royalties are calculated, determined, adjusted and paid pursuant to the Recording Agreement. Your royalty for singles, foreign sales, new technology, and other sales of records derived from, or uses of, the Masters embodied on the Album (or other full-length phonorecords embodying the Masters) will be reduced and pro-rated in the same proportion, if any, as Artist's royalties are reduced and pro-rated under the Recording Agreement. With respect to records and other exploitations of the Masters for which we are entitled to a percentage of net receipts, net monies or the like, you shall be entitled to that proportion of such net receipts, net monies or the like with respect to the Masters, determined by multiplying such net receipts, net monies or the like, by a fraction, the numerator of which is the applicable Basic Producer Rate and the denominator or which is the all-in basic unescalated artist rate under the Recording Agreement for the Album.

(c) No royalty shall be payable to you under this paragraph 4 until we have recouped all "recording costs", in connection with the Album from the "net artist" royalties (i.e. the basic artist

rate less the royalties payable to all producers and mixers and other third party royalty participants, including you in connection with the Album) payable to us in respect of the Album. After recoupment of such recording costs as aforesaid, royalties shall be payable to you hereunder for all records sold for which royalties are payable, retroactively from the first such record sold, subject to recoupment from such royalties of the Advance paid to you hereunder.

(d) As to records not consisting entirely of the Masters produced hereunder, the royalty rate otherwise payable to you hereunder with respect to the Masters embodied on such record shall be pro-rated by multiplying such royalty by a fraction, the numerator of which shall be the number of masters embodied on such record and the denominator of which is the number of royalty-bearing masters (including the Masters) embodied thereon.

(e) With respect to the commercial exploitation of audiovisual recordings ("Videos") embodying the Masters produced hereunder, your royalty shall be an amount equal to fifty (50%) percent of the amount determined by multiplying our royalty for such Video by a fraction, the numerator of which is equal to your basic royalty rate pursuant to subparagraph 4(a) above and the denominator of which is equal to our basic "all-in" royalty rate for net sales of Albums in the United States, and your royalty shall be pro-rated as provided in paragraph 4(d) above. Notwithstanding anything to the contrary contained herein, you shall not be credited with any royalty in respect of a Video unless and until we have recouped all recoupable costs incurred in the production of such Video from its net receipts in respect of such Video (as net receipts are determined pursuant to the Recording Agreement). Following such recoupment, your royalty for such Video shall be credited to your account on a prospective basis only.

(f) If we receive any monies or are credited with any monies against advances previously received from persons or entities (each a "Defined Third Party") which are attributable to the exploitation of the Masters, including by way of example, monies paid by Sound Exchange or any other Defined Third Party making payments in connection with either digital performing rights in masters or blank recording media levies (but specifically excluding monies paid to or credited to us from the exploitation of the musical composition embodied in the Masters), we shall pay to you an amount equal to the total amount of such monies received by us or credited to our account multiplied by a fraction, the numerator of which is Producer's Base Royalty Rate and the denominator of which is our Base Rate (without regard to escalations); and the provisions in this agreement regarding our accounting and audit recovery obligations to you shall apply to such monies. Pursuant to a letter of direction in the form attached hereto as Exhibit "B" and incorporated herein by this reference, we shall instruct Sound Exchange to account directly to you at the same time and subject to the same conditions pursuant to which it accounts to us.

5. Accountings:

(a) With respect to royalties payable to you hereunder, and notwithstanding anything to the contrary otherwise set forth in this agreement, I shall instruct and use reasonable efforts to cause my Distributor pursuant to an irrevocable letter of direction substantially in the form of Exhibit "A" attached hereto and incorporated herein by this reference, to account directly to you at the same time and subject to the same conditions pursuant to which it accounts to me after deduction of Advances and other permissible deductions on a semi-annual basis.

(b) All accountings rendered hereunder shall be binding upon you and not subject to

any objection by you for any reason unless specific written objection, stating the basis thereof, is furnished to us within two (2) years from the date rendered. We shall have the right to rely on the royalty statements and accountings provided to us by other Companies and you shall have no right to object to statements provided by us to you to the extent that they accurately reflect the information so provided to us by the Companies. You shall be foreclosed from maintaining any action claim or proceeding against us with respect to any statement or accounting due hereunder unless commenced against us in a court of competent jurisdiction within two (2) years after the date such accounting is rendered. If you commence suit on any controversy or claim concerning royalty accountings rendered to you hereunder, the scope of the proceeding will be limited to determination of the amount of the royalties due for the accounting periods concerned unless such suit is based upon a claim of fraud.

(c) You shall have the right to appoint a certified public accountant or attorney to examine our books and records relating to the sale of records embodying the Masters, provided that such examination shall take place at our offices during normal business hours, on reasonable written notice, not more frequently than once per statement or once in any calendar year and at your sole cost and expense. You shall furnish us with a copy of your accountant's audit report within sixty (60) days after the completion of the applicable audit. The rights granted herein to you constitute your sole right to examine our books and records.

6. Credit:

We shall accord to you the following credit on (i) the outside packaging of records (in all configurations) derived solely from the Masters produced hereunder; (ii) metadata; and (iii) the liner notes of records derived from the Masters produced hereunder in the same size, type, and placement as other producers in substantially the following form: "Produced by NNTYSIX". We shall use reasonable efforts to accord Producer such credit in all one-half (1/2) page or larger trade and consumer advertisements and Billboard strip ads placed by or under our control in the United States provided that such advertisements pertain to records derived solely from the Masters produced hereunder. Our inadvertent non-repetitive failure to comply with the foregoing shall not be deemed to be a breach of this agreement; provided that we shall use reasonable efforts to cure any such failure prospectively after receipt from you of written notice of such failure.

7. Mechanical Licenses.

(a) The musical composition or materials embodied in the Masters which are written or composed, in whole or in part, or owned or controlled, directly or indirectly, by you or by any person, firm or corporation associated or affiliated with you ("Controlled Composition") shall be and are hereby licensed to us at a mechanical rate for physical units equal to 100% of the statutory rate then in effect in the U.S. and Canada at the time of delivery.

(b) Without limiting the generality of the foregoing, you hereby grant (and shall grant, as applicable) to us the perpetual, irrevocable right and license throughout the universe to reproduce your Controlled Compositions in synchronization with and in time relation to visual images: (i) in so-called promotional "video programs" on a royalty-free basis; and (ii) in so-called commercial "video programs" (and you shall be entitled to your pro-rata share of royalties attributable to such commercial "video programs" (if any), and to use, copy, modify, adapt, translate, publicly perform, digitally perform, publicly display, reproduce, distribute, prepare derivative works of, and otherwise

exploit same in any format and/or medium now known or later developed.

(c) You hereby acknowledge on behalf of yourself and the other owners, and on behalf of your and their publishing designee(s) that without regard to any adjustment(s) which may be required in connection with any other Proprietary Material (as set forth in Section 10 herein below), you and the other owners (and the applicable publishing designees) own and/or control the following percentage(s) of the underlying composition(s) embodied in the Masters:

Anthony Catchings-Currie: 50%

Isaiah Dukes: 50%

8. Name and Likeness:

You hereby grant to us the right to use your approved name, approved likeness and approved biographical material solely in connection with the sale, advertising and promotion of the Album and other records derived from the Masters. You shall have a right of approval for all photographs and biographical material used by us in such connection, which approval shall not be unreasonably withheld and shall be deemed to have been given within five (5) days following your receipt of such material, unless you notify us to the contrary within said five (5) day period.

9. Representations and Warranties:

(a) With respect to your contributions hereunder, you hereby represent and warrant that:

(i) Unless otherwise approved by us, we shall not be required to make any payments of any nature for, or in connection with, the rendition of your services or the acquisition, exercise or exploitation of rights by us pursuant to this agreement, except as specifically provided herein;

(ii) there shall be no liens, encumbrances or other charges against the Masters at the time of delivery, including, without limitation, any uncleared samples;

(iii) all materials furnished by you in connection with the Masters shall be original and shall not infringe upon or violate the rights of any third parties; and

(iv) you will not produce or mix for any person or entity other than us a master recording embodying the musical composition embodied in the Masters or to any third party for at least three (3) years from the date of delivery to us of the Masters.

(b) (i) we hereby warrant and represent that we are under no disability, restriction or prohibition, whether contractual or otherwise, with respect to our right to execute this agreement and to perform each and every term and provision hereof.

(ii) No selections, materials, ideas or other properties furnished or selected by us or Artist and embodied or contained in or used in connection with the Masters or the packaging or advertising of phonograph records hereunder will violate or infringe upon any common law or statutory right of any person, firm or corporation, including, without limitation, contractual rights, copyrights, and rights of privacy.

10. Samples.

(a) In rendering services hereunder, you will not “sample” or otherwise incorporate into the Masters (for convenience “Sample” or “Sampling” herein) or permit any other party engaged by you, excluding us or any third parties engaged by us, to sample any copyrighted or otherwise proprietary material (“Proprietary Material”) belonging to any other person (such party herein referred to as “Owner”) without first (1) having notified us of the Proprietary Material that you or your agent intend to use and the identity of the Owner(s) thereof; (2) obtained our prior written approval of such intended use; (3) secured from Owner’s a written agreement, in a form satisfactory to us, that we shall have the worldwide perpetual right to use such Proprietary Material in and to use or otherwise distribute or exploit the Masters containing such Proprietary Material for all record purposes in all configurations and for use in music videos, in perpetuity, all either without any payments whatsoever to Owner(s) or upon payment to Owner(s) of a payment (the “Clearance Effort”). In the event that the Masters contains Proprietary Material furnished solely by you other than disclosed (“Undisclosed Material”), and if you have not obtained and delivered to us all licenses, permissions or other authorizations required hereunder prior to or simultaneously with delivery of the Masters, then such Masters will be deemed to be not satisfactory for the manufacture and sale of phonograph records, regardless of the date that we become aware of the existence of such Proprietary Material, and we reserve the right to reject delivery of the Masters which constitutes a material breach of this agreement. You warrant and represent that the Masters shall not contain any Proprietary Material furnished solely by you which has not been licensed so as to allow us and our licensees to distribute the Masters as fully contemplated in this agreement.

(b) You acknowledge and agree that any of the payments made by us in connection with the Clearance Efforts of any Undisclosed Material shall, without limitation of our other rights and remedies, at our election, be treated as Excess Costs in connection with the Masters, recoupable from any monies payable to Producer hereunder.

(c) If Owner(s) seeks a share of the so-called “sound recording rights” and/or “publishing rights” for use of Proprietary Material furnished solely by you in connection with the Masters:

(i) In connection with the Clearance Efforts of so-called “sound recording rights” for the use of such Proprietary Material any and all Clearance Costs in excess of the Approved Budget, including without limitation, (1) contingency participation (whether expressed in royalty or penny-rate terms, and including any advance against such contingency participation) conveyed, or (2) flat-fee “buy-out” paid, to any Owner(s) shall be deemed recording costs and as between you and us, be borne solely by you.

(ii) In connection with so-called “publishing rights” for use of such Proprietary Material, any conveyance or assignment to Owner(s) of any contingency and/or administration and any and all Clearance Costs shall reduce your ownership, contingency and/or administration in such copyright, if any, in a proportion equal to the percentage of ownership, contingency and/or administration granted or assigned to Owner in connection therewith.

11. Indemnification.

(a) You agree to indemnify and hold us and our successors, assigns, agents,

distributors and licensees harmless against any third party claims, losses, liabilities, costs and expenses (including, without limitation reasonable outside attorneys' fees) arising out of any breach or alleged breach by you of any warranty or representation made by you in this agreement, provided the claim concerned has been settled with your prior written approval, not to be unreasonably withheld, or has resulted in a final, adverse judgment against us or our licensees in a court of competent jurisdiction. We shall notify you in writing of any such claim and you shall have the right to participate in the defense of any such claim with counsel of your own choice and at your own expense; provided that we shall have the right at all times, in our sole discretion, to retain or resume control of the conduct thereof. Pending the resolution of any such claim, we may withhold monies that would otherwise be payable to you under this agreement in an amount consistent with such claim unless you make bonding arrangements, satisfactory to us in our reasonable business discretion, to assure us of reimbursement for all damages, liabilities, costs and expenses (including, without limitation, legal expenses and reasonable outside counsel fees) which we may incur as a result of that claim. If no action or other proceeding for recovery of such a claim has been commenced within twelve (12) months after its assertion we shall not continue to withhold monies and shall release such withheld monies in connection with that particular claim unless we believe, in our reasonable business judgment, that such proceeding may be instituted notwithstanding the passage of that time.

(b) We agree to indemnify, save, defend, and hold you harmless against any third claim, liability, cost and expense (including, without limitation, reasonable attorneys' fees) occasioned by any breach of any claims inconsistent with our representations and warranties made under subparagraph 9(b) above; provided that such claim is reduced to a final, adverse judgment in a court of competent jurisdiction or settled with our prior written consent, not to be unreasonably withheld.

12. Miscellaneous:

(a) All notices to be given by either party hereunder shall be in writing and shall be delivered by hand or by United States certified mail, postage prepaid, return receipt requested, to the address of each party on page one (1) until notice of a new address shall be duly given. Royalty statements and any payments due hereunder, shall also be sent to you at such address by regular mail.

(b) You shall have the status of an independent contractor hereunder, and nothing herein contained shall constitute or contemplate you as our agent or employee. You expressly acknowledge and agree that your services hereunder are of a unique, special, and intellectual character, which gives them peculiar value, and that in the event of a breach by you of any term, condition, or covenant hereof, we may be caused irreparable injury and we shall be entitled to seek injunctive relief in respect thereof without limiting my rights to pursue any and all remedies provided in such event by law or equity, which shall in no way limit your right to defend such claims.

(c) The invalidity or unenforceability of any provision hereof shall not affect the validity or enforceability of any other provision hereof. This agreement embodies the entire understanding of the parties with respect to the subject matter hereof, cannot be modified without an instrument in writing signed by both parties, and shall be governed by and interpreted in accordance with the laws of the State of Illinois applicable to agreements entered into and wholly performed in said State. Paragraph headings are inserted only for the purpose of convenient reference and shall not

be given any legal effect.

(d) The failure by either party to perform any of its material obligations hereunder shall not be deemed a breach of this agreement unless the party alleged to be in default is given written notice of such failure to perform and such failure is not corrected within thirty (30) days from and after receipt of such notice.

(e) No waiver by us or you whether expressed or implied, of any provision of this agreement or any default hereunder shall affect the other's right to thereafter enforce such provision or exercise any right to remedy in the event of any other default whether or not similar.

If the foregoing accurately sets forth your understanding of the agreement between you and us with respect to the subject matter hereof, please sign this letter where indicated below.

Very truly yours,

By: 
ISAIAH DUKES

ACCEPTED AND AGREED TO:

By: 
Anthony Catchings-Currie

SS#/EIN#: 353927234

EXHIBIT "A"
LETTER OF DIRECTION

Isaiah Dukes p/k/a "Lil Zay Osama"
c/o Law offices of Daryl D. Jones P.C.
1644 N. Honore, Ste.300
Chicago, IL 60622
Attn: Daryl D. Jones

January 1, 2020

Warner Bros. Records Inc.
3300 Warner Blvd
Burbank, CA 91505
Attn: A&R Administration

Ladies and Gentlemen:

Reference is made to the agreement between you and me with respect to the exclusive recording services of Isaiah Dukes ("**Artist**") dated as of January 22, 2019, as such agreement may have been amended (the "**Agreement**"). Capitalized terms used and not defined below will have the same meanings assigned to them in the Agreement.

I have engaged Antony Catching-Currie p/k/a "NNTYSIX" (the "**Producer**") to produce the Recordings of three (3) master recordings entitled "Last Year", "Everybody", and "Real Street Nigga" Composition to be included on the "TBD" Album under the Agreement (individually and collectively, the "**Masters**").

1. Although the Agreement requires me to pay for the services of the Producer, I hereby request and irrevocably authorize you to make payments for Producer's services on my behalf, as follows:

(a) A royalty (the "**Producer Royalty**") on Net Sales of Records derived from the Masters, computed and paid in the same manner as the royalty payable under paragraph 4 of the Agreement, at the same times, and subject to the same conditions, but at a Basic U.S. Rate of three percent (3%), and further subject to the terms and conditions of this letter of direction. With respect to any use of the Masters or any of them for which you pay me a royalty computed as a percentage of your Net Receipts from such use, the Producer Royalty hereunder in respect of such use shall be equal to fifty (50%) percent of my royalty therefor (i.e., computed based on a fraction, the numerator of which is Producer's basic U.S. rate and the denominator of which is my Basic U.S. Rate. The Producer Royalty payable by you hereunder shall in all respects be reduced, paid, and otherwise calculated (i.e., reserves, reductions for foreign sales, Royalty Base Price, etc.) in the same manner and at the same times as the royalties payable by you to me in respect of the Masters are reduced, paid and otherwise calculated (except for any escalations based on sales) pursuant to the terms of the Agreement as of the date hereof. The amount of the Producer Royalty will be deducted from all monies payable or becoming payable to me under the Agreement or any other agreement between us.

(b) An advance against the Producer Royalty of One Thousand Five Hundred

Dollars (\$1,500) Dollars per master for an aggregate total of Four Thousand Five Hundred Dollars (\$4,500), payable on full execution of this Agreement.

(c) The Producer Royalty will not be payable until you have recouped, at my net rate (i.e., my Basic U.S. Rate for the Masters less the Producer's Basic U.S. Rate and the Basic U.S. Rate payable to any third party for the Masters), all Recording Costs (inclusive of the Advance) attributable to the Masters. After such recoupment, the Producer Royalty will be computed retroactively from the first Record sold (and will be payable on all Net Sales of such Records), subject to the recoupment of the Advance and any other monies paid, or payable, to or on behalf of the Producer from the Producer Royalty.

(d) With respect to any Record embodying any of the Masters together with other Recordings, the rate of the Producer Royalty shall be the rate otherwise applicable multiplied by a fraction, the numerator of which is the number of Masters embodied in such Record, and the denominator of which is the total number of Recordings embodied in such Record.

(e) With respect to Audiovisual Records embodying any of the Masters, the Producer Royalty shall only be payable prospectively following recoupment of all production costs incurred for all Videos produced in connection with the "TBD" Album and shall be one-half (1/2) of the royalty otherwise computed pursuant to the proportionate reduction provided in paragraph 1(a).

2. Your compliance with this authorization will constitute an accommodation to me alone; the Producer is not a beneficiary of it. All payments to the Producer under this authorization will constitute payment to me and you will have no liability by reason of any erroneous payment or failure to comply with this authorization. I will indemnify and hold you harmless against any claims asserted against you and any damages, losses or expenses you incur by reason of such payment or otherwise in connection herewith.

3. All monies becoming payable under this authorization will be remitted to the Producer at the following address or otherwise as Producer directs you in writing and will be accompanied by statements with respect to those payments:

Anthony Catchings-Currie
p/k/a "NNTYSIX"
13049 South Escanaba Ave.
Chicago, IL 60633

Very truly yours,



Isaiah Dukes

EXHIBIT "B"
(SoundExchange Letter of Direction)

Solely as a service and accommodation to those featured artists entitled to royalties under 17 U.S.C. § 114(g)(2)(D) who specifically authorize SoundExchange to collect and distribute royalties on their behalf, SoundExchange permits such featured artists to designate that a percentage of the royalties due them from SoundExchange relating to certain sound recordings be remitted to creative personnel credited or recognized publicly for the commercially released sound recording on which the featured artist performs or other usual and customary royalty participants in such sound recording.

Please note that a performer need not execute this Letter of Direction in order to be paid statutory royalties by SoundExchange.

To make such a designation, the performer submitting this Letter of Direction ("LOD") must be registered with SoundExchange.

Sections with asterisks are required.

*Name of Solo Artist or Group on recording(s): LIL ZAY OSAMA

*Legal Name of Performer(s) for this LOD: Isaiah Dukes

*Name of LOD Recipient ("Payee"): _____

*Payee Address: _____

Payee Telephone Number: _____

*Payee E-Mail: _____

*Track Name(s): The Repertoire Chart is required to complete the LOD, please submit with this form.

*Effective Date: (choose one)

☐ Check here if LOD applies as of _____ [date]

☐ Check here if LOD applies retroactively to all available SoundExchange royalties, for all LOD tracks

☐ Check here if the Effective Date varies by track. Enter the Effective Dates on the Repertoire Chart.

*Payment Percentage ("Percentage"): check applicable box

☐ 15% of Performer royalties are applicable to all LOD tracks

☐ Percentage varies by each track covered by this LOD. Enter percentages on the Repertoire Chart.

By signing this Letter of Direction and submitting it to SoundExchange, Performer agrees as follows:

1. Performer represents and warrants that Performer is the featured recording artist who performed on the sound recording(s) identified on the "Repertoire Chart" attached hereto as Schedule 1 (the "Recordings").
2. Performer represents and warrants that Payee is an individual credited or recognized publicly for the commercially released sound recording identified on the Repertoire Chart or is another usual and customary royalty participant in such sound recording.
3. Performer requests and authorizes SoundExchange to pay to and in the name of Payee an amount equal to Percentage of the royalties otherwise payable by SoundExchange to Performer in respect of the Recordings, thereby reducing the payments from SoundExchange to Performer. If a previous "Royalty Distribution Information for Featured Artist" or other letter of direction has been provided to SoundExchange that conflicts with this Letter of Direction, then any and all previous letters of direction or similar documents conflicting herewith are hereby revoked.
4. All monies becoming payable under this Letter of Direction shall be remitted to Payee at the address identified above or as Payee otherwise directs SoundExchange in writing. If SoundExchange requires additional information (e.g., Payee tax information) to remit payments under this Letter of Direction, then Performer and Payee shall be responsible for providing SoundExchange with such information promptly. To the extent SoundExchange is not provided with sufficient or correct information to remit payment to Payee, or checks mailed to Payee's last known address are returned, SoundExchange may hold the monies pending receipt of such information or pay the royalties to Performer.
5. SoundExchange will honor a written revocation by Performer of the designation made by this Letter of Direction. In the event of such a revocation, SoundExchange may, but need not, mail notice of the revocation to the last known address of Payee. The foregoing is without prejudice to any other contractual arrangements between Performer and Payee requiring payment of the Percentage by Performer. SoundExchange has no responsibility for Performer's performance or nonperformance of any such obligation.
6. SoundExchange may discontinue making payments under this Letter of Direction at any time, including if checks mailed to Payee's last known address are returned, Performer ceases to be a registrant of SoundExchange, or SoundExchange modifies its policies concerning letters of direction. If it does so, then SoundExchange may, but need not, mail notice thereof to the last known address of Performer and Payee, and monies that otherwise would have been payable under this Letter of Direction will be paid to Performer.

7. Performer acknowledges that SoundExchange is providing payments to Payee solely as an accommodation to Performer but that all royalties distributed by SoundExchange to Payee are taxable to Performer. Performer shall be solely responsible for providing Payee with tax paperwork required by any governmental agency, including the Internal Revenue Service, and SoundExchange shall have no obligation to provide such information to Payee.

8. SoundExchange may rely conclusively, and shall have no liability when acting, upon any written notice, instruction, other document or signature that is reasonably believed by SoundExchange to be genuine and to be authorized by Performer. SoundExchange shall not be responsible for failure to act as a result of causes beyond the reasonable control of SoundExchange. SoundExchange shall not be liable to Performer, Payee or to any third party for, and Performer agrees to defend (with counsel satisfactory to SoundExchange), indemnify and hold harmless SoundExchange from, any damages or loss (including reasonable attorney's fees) in any way related to this Letter of Direction, unless such loss is caused by SoundExchange's gross negligence or willful misconduct. The provisions of this Paragraph 8 shall survive the revocation or other termination of this Letter of Direction.

9. This Letter of Direction shall be governed by and construed in accordance with the substantive laws of the District of Columbia. Any dispute relating to or arising from this Letter of Direction shall be subject to the exclusive jurisdiction of courts sitting in the District of Columbia.

ACKNOWLEDGED AND ACCEPTED BY:

(The signature of each Performer or Authorized Signatory for each Performer is required.)

Performer Signature: 

*Performer Printed Legal Name: _____

OR, Authorized Signatory: _____

Authorized Signatory Printed Name: _____

Date of Signature: _____

Return the original of this form to:

SoundExchange, Inc.

733 10th Street NW, 10th Floor

Washington, DC 20001

You may also scan and email the completed forms to accounts@soundexchange.com

Or fax to: 202.640.5859

If you have questions, please call 1-800-961-2091 or email accounts@soundexchange.com

Schedule 1: Repertoire Chart for Featured Artist Letter of Direction

	*Name of Solo Artist or Group on Recording(s):	LIL ZAY OSAMA							
	* LOD Recipient Name:	Anthony Catchings-Currie							
	* indicates a Required Field. Other fields are optional, but assist in identifying reported performances.								
	* Sound Recording Track Name(s)	* Percentage Share of artist royalties, for this track, to be assigned to the LOD recipient (as a % only, do not use "points" or fractions)	Effective Date of the LOD for this track (required if tracks have different effective dates)	Track Version (e.g., studio, re-mix version, etc)	Sound Recording Track ISRC	Album or Release Name	Label	Release Date	Other artists on this track (if applicable)
Track 1	Last Year	15%				TBD	Warner Bros Records		
2	Everybody	15%							
Track 3	Real Street Nigga	15%				TBD	Warner Bros Records		
Track 4									
Track 5									